

Committees

[UK Parliament](#) > [Business](#) > [Committees](#) > [Constitution Committee](#) > News Article

Rule of law: holding the line between anarchy and tyranny

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The rule of law in the UK is being weakened, and everyone must take steps to protect it against further erosion, says the House of Lords Constitution Committee.

- [Report: The rule of law: holding the line against tyranny and anarchy](#) (HTML)
- [Report: The rule of law: holding the line against tyranny and anarchy](#) (PDF)
- [Shorthand story: The rule of law is under threat in the UK](#)
- [Inquiry: Rule of Law](#)
- [Select Committee on the Constitution](#)

Background

The committee's report 'Rule of law: holding the line between anarchy and tyranny', published today, follows an inquiry launched amid concerns about the decline of the rule of law globally. The report explores the meaning and importance of the rule of law within the UK, and what the principle looks like in practice.

The rule of law is one of the core constitutional principles underpinning the UK's democracy and, though it is in fairly good shape within the country, the report warns:

- We must not be complacent about the strength of the rule of law in the UK. Without a strong rule of law tradition and sense of values, we risk mob rule and anarchy
- There is a sense that laws are being broken without consequence, including by public figures, which is diminishing public support for the rule of law. An apparent inability to address shop theft, phone theft and other visible crimes contributes to this

- An ineffective justice system where people face substantial delays and may have to represent themselves due to the lack of access to legal support, risks denying many people true justice
- Questioning the integrity of the judiciary and spreading misinformation is unacceptable and feeds distrust in the justice system. This at times can be unfounded and exacerbated by the media.

The rule of law entails a framework of law and of checks and balances that exist to prevent the arbitrary exercise of government power. However, the committee says the rule of law goes much further than this. It is also about the relationship between citizens, and how a peaceful, stable and successful society is maintained. This is through a strong cultural norm that is woven into everyday lives.

In order to rebuild this cultural norm, everyone, in particular, politicians and the Government need to take an active role, and this must start now, the report urges. Failing to do so risks the rise of extremist political parties, growing antipathy towards democracy, and, ultimately, creating space for dictatorship.

Key recommendations

The committee makes the following recommendations:

- Everyone should take personal responsibility to act lawfully and should be held to account if they do break the law. The Government must recognise and support the role that policing plays in building and maintaining respect for the rule of law
- The Government must urgently take decisive action to tackle delays in the courts. This should involve consideration of innovative solutions, exploring the adoption of new technologies across the justice process, the role of alternative dispute resolution, and increased support of advice services
- There should also be uniform provision of public legal education in schools to improve public understanding of, and confidence engaging with, the justice system. Necessary resources and expertise should also be made available to better communicate judicial decisions
- The Government and politicians more generally, must take stronger action to defend the judiciary against attack and should seek to avoid contributing to unjustified criticism of legal professionals. Ministers must set the tone in demonstrating that questioning the integrity of judges and spreading misinformation about their judgments is unacceptable. This also extends to the police
- Whilst parliamentary sovereignty means that Parliament can make any law including those which could damage the rule of law, it must take its constitutional responsibilities seriously and exercise this power with due care, bearing in mind compliance with the state's international obligations
- The law itself must be accessible and clear. The Government should avoid introducing additional complexity into the statute book unnecessarily, and it should not seek to bypass parliamentary scrutiny through the excessive use of delegated legislation.

Chair's comments

Lord Strathclyde, Chair of the Constitution Committee said:

“We should be proud of our long history of the rule of law in the United Kingdom and the role it plays in ensuring we have peaceful communities and in underpinning business and trade. But we cannot be complacent. This stability is not guaranteed and protecting the rule of law is something that everyone, not only politicians and lawyers, should both want to do and actively be doing.

“The erosion of trust in the rule of law has become particularly acute in recent years, as law breaking with apparent impunity in the form of shop theft and other visible crimes, alongside delays and backlogs in the courts, have now become part of our everyday lives.

“The Government should be at the forefront of restoring our belief in the rule of law. It needs to take strong and visible action to promote and uphold this important constitutional value and this should be underpinned by addressing the weaknesses in our justice system.

“This is a crucial moment and decisive action must be taken.”

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